Galveston County District Court

Cause No. 2025-CV-0045

Kevin Nicholson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	1-9-26
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations in Plaintiff's Original Petition and requests that Plaintiff be required to prove the charges and allegations against Defendant by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the collision, including by failing to keep a proper lookout, failing to yield the right-of-way, and failing to maintain a safe dsitance from adjacent vehicles. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced in proportion to Plaintiff's percentage of responsibility, and Plaintiff may recover nothing if that percentage exceeds fifty percent.

Second, the collision was caused in whole or in part by the acts or omissions of a third party over whom Defendant had no control, and Defendant requests that the trier of fact consider that responsibility under Section 33.004.

Third, Plaintiff failed to mitigate damages, if any, by failing to follow reasonable medical advice and by failing to seek timely treatment, and any recovery must be reduced accordingly.